

By: Powell

S.B. No. 661

A BILL TO BE ENTITLED

AN ACT

relating to the establishment of the Building Better Futures Program to support educational and occupational skills training opportunities and support services for students with intellectual and developmental disabilities at public and private institutions of higher education.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF TEXAS:

SECTION 1. Chapter 61, Education Code, is amended by adding Subchapter OO to read as follows:

SUBCHAPTER OO. BUILDING BETTER FUTURES PROGRAM

Sec. 61.9971. PROGRAM PURPOSE. The purpose of the Building Better Futures Program is to facilitate the delivery by institutions of higher education and private or independent institutions of higher education of educational and occupational skills training opportunities and support services to students with intellectual and developmental disabilities in an inclusive and age-appropriate environment.

Sec. 61.9972. ADMINISTRATION; RULES. (a) The board shall administer the Building Better Futures Program and adopt any rules necessary to implement the program or this subchapter.

(b) The board may develop a competitive application process for the award of funds to eligible institutions under the program.

(c) A program or course offered under the Building Better Futures Program is exempt from the requirements of Sections 61.0512

1 and 61.822.

2 Sec. 61.9973. INSTITUTION ELIGIBILITY. (a) To be eligible
3 to participate in the Building Better Futures Program, an
4 institution of higher education or private or independent
5 institution of higher education:

6 (1) must:

7 (A) be approved by or awaiting approval from the
8 United States Department of Education to offer a comprehensive
9 transition and postsecondary program for students with
10 intellectual or developmental disabilities;

11 (B) develop and implement a selective admissions
12 process to select eligible students under Section 61.9974 for
13 admission to the institution's comprehensive transition and
14 postsecondary program; and

15 (C) award a certificate to each student who
16 successfully completes the Building Better Futures Program at the
17 institution; and

18 (2) may not allow credit hours completed under the
19 Building Better Futures Program to be transferred toward an
20 associate or baccalaureate degree program.

21 (b) The board shall establish criteria to ensure that each
22 eligible institution that has requested but not yet received
23 approval from the United States Department of Education for the
24 institution's comprehensive transition and postsecondary program
25 obtains that approval not later than the third anniversary of the
26 date the institution is initially selected by the board for
27 participation in the Building Better Futures Program.

1 Sec. 61.9974. STUDENT ELIGIBILITY. (a) To be eligible to
2 participate in the Building Better Futures Program, an applicant
3 must:

4 (1) apply for admission to a comprehensive transition
5 and postsecondary program, or a program that is awaiting approval
6 from the United States Department of Education as a comprehensive
7 transition and postsecondary program, at an eligible institution;

8 (2) be a citizen or a lawful permanent resident of the
9 United States;

10 (3) be a resident of this state under Section [54.052](#),
11 except as provided by Subsection (d) of this section;

12 (4) have an intellectual or developmental disability
13 diagnosed by a physician, psychologist, or other individual
14 qualified by license or statute to make such a diagnosis;

15 (5) be able and willing to learn and participate in an
16 inclusive classroom and work setting; and

17 (6) not be a danger to the applicant's self or others,
18 as determined by the accepting institution.

19 (b) An applicant who is a lawful permanent resident of the
20 United States must submit with the applicant's application a copy
21 of the applicant's lawful permanent resident form.

22 (c) An eligible institution may require an applicant or the
23 applicant's parent or guardian to provide proof of residency as
24 evidenced by one of the following:

25 (1) information from the Free Application for Federal
26 Student Aid;

27 (2) a driver's license issued by the Department of

1 Public Safety that has not expired;

2 (3) documentation of payment for personal or real
3 property taxes for the previous year;

4 (4) vehicle registration issued by the Texas
5 Department of Motor Vehicles that has not expired;

6 (5) a voter registration certificate issued in this
7 state that has not expired; or

8 (6) documentation under Section [54.053](#).

9 (d) An applicant who is not a resident of this state may be
10 eligible to participate in the Building Better Futures Program at
11 an eligible institution only if an opening is available after all
12 resident applicants are admitted.

13 Sec. 61.9975. AWARD OF FUNDS. The board may award funds
14 under the Building Better Futures Program only to eligible
15 institutions to be used by the institutions to facilitate the
16 delivery of educational and occupational skills training
17 opportunities and support services to students participating in the
18 program.

19 Sec. 61.9976. FUNDING. The board may use any available
20 revenue, including legislative appropriations, and may solicit and
21 accept gifts, grants, and donations from a public or private source
22 for the purposes of this subchapter.

23 SECTION 2. The Texas Higher Education Coordinating Board
24 shall adopt rules to administer Subchapter 00, Chapter [61](#),
25 Education Code, as added by this Act, as soon as practicable after
26 the effective date of this Act.

27 SECTION 3. This Act takes effect immediately if it receives

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1 a vote of two-thirds of all the members elected to each house, as
2 provided by Section 39, Article III, Texas Constitution. If this
3 Act does not receive the vote necessary for immediate effect, this
4 Act takes effect September 1, 2021.